

Form No: HCJD/C-121

ORDER SHEET

IN THE LAHORE HIGH COURT

MULTAN BENCH MULTAN

JUDICIAL DEPARTMENT

Crl. Misc. No.6962- B/2018

Muhammad Ramzan **Vs.** The State & another.

S.No. of order/ proceeding	Date of order/ proceeding.	Order with signatures of Judge, and that of parties or counsel, where necessary.
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11.02.2019	Mian Muhammad Shafi Mirali, Advocate for the petitioner. Mr. Bashir Ahmad Malik, Deputy District Public Prosecutor with Mushtaq, SI. Prince Rehan Iftikhar Sheikh, Advocate for Sumera Bibi.
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The petitioner namely Muhammad Ramzan is seeking post-arrest bail in the cross-version of case FIR No.179 of 2018, dated 29.07.2018, registered at Police Station Rangpur, District Muzaffargarh, in respect of offences under sections 302,337-A(i), 496-A, 34 PPC.

2. The allegation, against the petitioner, as culled from the evidentiary material produced before the Court, is that on 29.07.2018 at about 10.00 a.m he along with his co-accused namely Khalid Mehmood, Muhammad Iqbal son of Murad, Muhammad Iqbal son of Allah Ditta and Ghulam Mustafa attacked Mst. Sumera Bibi and gave her beating whereupon the witnesses namely Sultan and Sajjad were attracted at the spot upon which the petitioner allegedly threw down son of Sumera Bibi namely Miraj Asif (deceased), who died as a consequence of the act of throwing him down, whereas the other accused gave beating to other son of Sumera Bibi namely Ammar Asif and Sumera Bibi ran away and took shelter in Darul Aman at Muzaffargarh. During the investigation of the case, it was further alleged that a false FIR

No.179 of 2018, dated 29.07.2018, was got registered at Police Station Rangpur, District Muzaffargarh, in respect of offences under section 496-A PPC and the actual facts were as stated by Sumera Bibi.

3. I have heard the learned counsel for the parties and have gone through the record of this case with their able assistance.

4. It has been noticed by this Court that after the FIR No.179 of 2018 was registered on at the Police Station Rang Pur District Muzaffargarh on 29.07.2018 then, after a delay of about a month, Sumera Bibi appeared before the Investigating Officer and got recorded her statement. There is no explanation of the cause of said delay in getting recorded the statement by Sumera Bibi. Learned counsel appearing on behalf of Sumera Bibi tried to explain that as she was lodged in *Darul Aman* at Muzaffargarh, therefore, she did not report the matter. This explanation is also bereft of clarification as it is a matter of record that Sumera Bibi got recorded her statement under section 164 of Cr.PC, in respect of getting herself lodged in the shelter home, on 10.08.2018. From 29.07.2018 i.e the day of occurrence till 10.08.2018 there is no explanation as to where Sumera Bibi remained and as to why she kept mum for so many days. Both the sons of Sumera Bibi namely Miraj Asif and Ammar Asif were examined on 29.07.2018 by their attendants which did not include either Sumera Bibi or her witnesses Muhammad Sajjad and Sultan Mehmood. One more aspect of the case is that even if Sumera Bibi was lodged in the Darul Aman but her witnesses namely Muhammad Sajjad and Sultan Mehmood were not under any restraint. Prosecution cannot explain their failure of reporting the matter to the police. Both these witnesses namely Muhammad Sajjad and Sultan Mehmood also appeared before

the police only on 29.08.2018, i.e. after a period of one month of the occurrence, for the first time. This delay in reporting the matter to the police by Sumera Bibi and her witnesses alone makes the case one of further inquiry and probe as against the petitioner. Furthermore, a private complaint has been lodged by Manzoor Hussain, (complainant of the FIR) as against Muhammad Akram , Muhammad Akmal, Safdar Ali and Mst. Sumera. Already the respondents in the said private complaint have been summoned as accused by the learned trial Court vide order dated 20.10.2018. In view of this it would be only the trial Court which would decide as to which of the version of the two is the correct one. Reliance is placed on the case of “MUHAMMAD ASHRAF ASIM Versus SAJJAD AHMAD and other” (2011 S C M R 1725) wherein it has been held as under:-

The prosecution itself has two versions of the death of Amjad deceased, one advanced by the complainant party and the other concluded by the investigating agency, which divergence had rendered the case against respondent No.1 one of further inquiry.

Mere involvement in a heinous offence is no ground for refusing bail to an accused who otherwise becomes entitled for the concession of bail. The petitioner, namely Muhammad Ramzan, was arrested in this case on 09.09.2018, since then he is behind the bars, he is previous non-convict, never involved in any case, investigation qua him is complete, his person is no more required for further investigation, therefore, his continuous incarceration would not serve any beneficial purpose at this stage.

5. For what has been discussed above, the case of the petitioner becomes one of further inquiry covered by subsection (2) of section 497, Cr.P.C. Liability of petitioner

for the said offences would be determined by the learned trial court after sifting the evidentiary worth of the material produced before the same. Till then, case of petitioner would be within the domain of section 497(2), Cr.P.C. calling for further inquiry into the petitioner's guilt. The petition in hand is accepted and the petitioner is admitted to post-arrest bail subject to his furnishing bail bonds in the sum of Rs.500,000/- (rupees five hundred thousand only) with two sureties, in the like amount, to the satisfaction of learned trial court.

6. Needless to mention that any observations made in the above order are tentative in nature and shall not influence the trial court.

(Sadiq Mahmud Khurram)
Judge

RAHEEL

APPROVED FOR REPORTING

JUDGE